

Even liberally construing the pleading filed by a self-represented litigant, it is evident that Defendant admits the fact of the debt and does not state any cognizable defense to the liability. While Defendant expresses a desire for the creditor to forgive the debt, that does not change the plain conclusion that the Answer does not state facts sufficient to constitute a defense to the Complaint.

The Motion for Judgment on the Pleadings was unopposed.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint states facts sufficient to constitute a cause or causes of action against the Defendant and Defendant's Answer does not state facts sufficient to constitute a defense to the Complaint.
2. Defendant became indebted in the amount of \$8,083.88 on the subject credit card account (the "Debt").
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

Plaintiff seeks an award of \$285.00 for recoverable court costs. No memorandum of costs was filed as part of the moving papers. Nor were any recoverable court costs sufficiently itemized in any supporting declaration(s). Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law. In the alternative, Plaintiff's counsel may appear to be sworn and testify as to the costs incurred.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

12. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
HEARING IN RE: MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS & TO SERVE LATE
FILED BY: GARDNER, TENISHA M
TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver"). The Motion for Relief from Waiver was set for hearing on December 2, 2025.

The Court notes that there is a separate pending Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted filed October 6, 2025 by plaintiff Bank of America, N.A. (“Plaintiff”) which is set for hearing on December 16, 2025 (the “Motion to Deem Admissions”).

Background

Plaintiff served Defendant with a set of Form Interrogatories (the “Form Interrogatories”) on June 18, 2025. See Declaration of Tenisha M Gardner (the “Supporting Declaration”), ¶12. A copy of the Form Interrogatories was not attached to the motion papers, nor was a proof of service as to the Form Interrogatories. However, Defendant recites that her deadline to respond was July 23, 2025. *Id.*

Defendant indicates that she failed to timely respond to the Form Interrogatories due to “calendar confusion, family emergencies, health issues and work schedule.” Supporting Declaration, ¶13. She attributes the failure to respond to “excusable neglect and inadvertence on [Defendant’s] part.” *Id.* at ¶14.

After realizing the oversight on October 4, 2025, she prepared responses and served those responses with her motion papers. See Supporting Declaration, ¶¶15-6. She notes that the trial is in “early discovery” and no trial date has been set. *Id.* at ¶¶8-9.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party fails to respond to interrogatories propounded upon it, the party waives all objection to the interrogatories. Code Civ. Proc. § 2030.290(a); see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2024) (“CJER Civ. Pro.—Discovery”), § 17.24.

However, on motion, the Court may set aside that waiver if the responding party failed to serve a timely response because of mistake, inadvertence, or excusable neglect, and has meanwhile served a response. Code Civ. Proc. § 2030.290(a) (“The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240. [¶] (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”); see CJER Civ. Pro.—Discovery, § 17.24.

Plaintiff, the party propounding the subject Form Interrogatories, did not file any opposition

papers and has not made any showing that the responses to the Form Interrogatories served by Defendant were not substantially compliant with the applicable statutory requirements.

Accordingly, the Court finds that Defendant is entitled to relief from waiver of objections to the subject Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Disposition

The Court further finds and orders as follows:

1. The Motion for Relief from Waiver is GRANTED.
2. **In light of the foregoing and in the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the parties are ordered to meet and confer regarding the Motion to Deem Admissions.** See Code Civ. Proc. § 2033.280(a) ("The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. [¶] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect."); see also Code Civ. Proc. § 2033.280(c); CJER Civ. Pro.—Discovery, § 21.22 (a responding party's service, before the hearing on a "deemed admitted" motion, of substantially complaint responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted).

13. 9:00 AM CASE NUMBER: L25-10974
CASE NAME: MICHAEL MCWHORTER VS. EF GOMEZ CEMENT CONTRACTOR INC,
HEARING IN RE: PTN RE: CCP 8480 FOR ORDER RELEASING REAL PRPTY FROM MECHANICS LIEN
FILED BY: MCWHORTER, MICHAEL C.
TENTATIVE RULING:

Petitioners Michael C. McWhorter and Jame D. McWhorter, as Trustees of the McWhorter Trust ("Petitioners") filed a Petition and Declaration under California Civil Code Section 8480 for Order Releasing Real Property from Mechanics Lien on September 15, 2025 (the "Petition"). That Petition was set for a hearing date of December 2, 2025.

A Proof of Service of Summons was filed on October 23, 2025 reflecting service of the Summons, Petition and related papers on October 22, 2025 on respondent EF Gomez Cement Contractor, Inc. ("Respondent").

Background

Petitioner's Petition seeks the release of a Mechanics' Lien recorded on the subject real property commonly known as 112 Amber Valley, Orinda, California (the "Subject Real Property") on or about April 29, 2025 (the "Mechanics' Lien") because Petitioner alleges that Respondent failed to bring an action to enforce the lien within 90 days after the